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Martin's Funerals

Module 6

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ACKNOWLEDGEMENT OF RECEIPT

I hereby acknowledge receipt of the *Martin's Funerals Operations Manual* and confirm that I understand and accept the confidentiality obligations relating to the Martin's Funerals brand, trademarks, trade secrets, copyright, operational know-how, and goodwill, whether currently existing or arising in the future.

Name: _____

Signature: _____

Date: _____

Editions and Copyright

Editions:

1st–2nd Editions: February 1998

3rd Edition: March 2000

4th Edition: November 2000

5th Edition: June 2001

6th Edition: February 2006

7th Edition: May 2007

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No provision of this Manual, nor any conduct taken in terms of it, shall be interpreted as limiting, waiving, or excluding any right or protection afforded to a consumer, franchisee, or other protected person under the Consumer Protection Act, 68 of 2008, or any other applicable South African legislation.

All discretionary powers exercised under this Manual shall be applied reasonably, proportionately, and in good faith, and—except where immediate action or objectively necessary is objectively required to prevent serious harm, illegality, or regulatory breach—only after written notice and a reasonable opportunity to remedy, in accordance with section 48 of the Consumer Protection Act, 68 of 2008.

Where technical or legal language is used, it must be interpreted in a manner that is understandable to a reasonable franchisee or consumer, and any ambiguity shall be resolved in favour of fairness, transparency, and consumer protection.

HUMAN RESOURCES, EMPLOYMENT & DISCIPLINARY MANUAL

Confidential – Franchise Use Only

PREAMBLE

This Human Resources and Employment Manual forms part of the official operational framework of **Martin's Funerals**. It is designed to provide clear, consistent, and lawful guidance to franchisees, managers, and employees across all branches.

The policies, contracts, procedures, and standards contained herein reflect the values, history, and professional standards of Martin's Funerals, while complying with applicable South African labour legislation.

This Manual must be read in conjunction with individual employment contracts, annexures, and company policies. Where inconsistencies arise, South African labour law shall prevail.

CONFIDENTIALITY NOTICE

The information contained in this Manual is proprietary and confidential. It may not be reproduced, disclosed, or distributed without the prior written consent of Martin's Funerals Franchising (Pty) Ltd.

All employees are required to maintain strict confidentiality and conduct themselves with dignity, integrity, and professionalism. These obligations survive termination of employment and are enforceable through disciplinary and legal processes.

SECTION 1: CONFIDENTIALITY & NON-DISCLOSURE

All employees, contractors, and representatives of Martin's Funerals are bound by a strict duty of confidentiality.

Employees shall not, during or after their employment, disclose or misuse any confidential information including but not limited to:

- Business methods, systems, pricing structures, and strategies
- Client, customer, and supplier information
- Financial, operational, and remuneration data
- Discoveries, developments, inventions, or processes

Any breach of confidentiality may result in disciplinary action, dismissal, and/or legal proceedings.

This obligation survives termination of employment.

SECTION 2: EMPLOYMENT RELATIONSHIP

Appointment & Duration

All employees are appointed subject to a written employment contract. Employment is of unlimited duration unless otherwise stated and continues until terminated in accordance with this Manual and the Basic Conditions of Employment Act.

Probation

Unless otherwise specified, all appointments are subject to a three (3) month probationary period.

SECTION 3: ROLES & RESPONSIBILITIES

Funeral Services Driver

Funeral Services Drivers are entrusted with the dignified and respectful transport of deceased persons and clients.

Core Responsibilities: - Safe and lawful operation of funeral vehicles - Collection and transportation of deceased persons - Maintenance of vehicle cleanliness and presentation - Accurate completion of logbooks and documentation - Strict adherence to confidentiality and safety protocols

Drivers must demonstrate professionalism, compassion, and reliability at all times.

Arrangement Clerk

Arrangement Clerks are responsible for administrative, client-facing, and operational coordination.

Core Responsibilities: - Client assistance and funeral arrangements - Accurate capturing of documentation and payments - Daily cash-ups and financial accountability - Office administration and record-keeping - Compliance with company standards and reporting requirements

Mortuary Employee

Mortuary Employees are responsible for the respectful handling and preparation of deceased persons.

Core Responsibilities: - Receiving, handling, and preparing deceased persons - Maintaining hygiene and infection control standards - Proper use of protective equipment - Respectful and dignified conduct at all times

SECTION 4: WORKING HOURS & STANDBY

Normal working hours are: - Monday to Friday: 08:00 – 17:00 - Saturday: 08:00 – 13:00

Funeral services operate 24 hours. Employees may be required to work after-hours, weekends, public holidays, and standby shifts in accordance with operational needs.

Overtime is a condition of employment. Where applicable, time off in lieu may be granted at management's discretion.

SECTION 5: REMUNERATION

Remuneration is paid monthly in arrears unless otherwise agreed.

Employees are subject to statutory deductions including PAYE and UIF.

Commission, standby allowances, or bonuses are governed by written agreements or company policy.

Unauthorized absence will result in unpaid time.

SECTION 6: LEAVE

Annual Leave

Employees accrue annual leave in accordance with the Basic Conditions of Employment Act. Leave must be approved in advance and may be restricted due to operational requirements.

Sick Leave

Sick leave is granted per statutory requirements. Medical certificates are required for extended or repeated absences.

Family Responsibility Leave

Eligible employees may take family responsibility leave as provided by law.

Maternity & Paternity Leave

Maternity and paternity leave are granted in accordance with statutory provisions.

SECTION 7: HEALTH, SAFETY & CONDUCT

Employees must comply with all health, safety, hygiene, and infection-control protocols.

The use of alcohol, illegal substances, or reporting for duty under the influence is strictly prohibited and constitutes gross misconduct.

SECTION 8: DISCIPLINARY CODE

Discipline at Martin's Funerals is corrective rather than punitive. No employee will be disciplined or dismissed without a procedurally fair hearing. Employees have the right to representation, to state their case, and to appeal decisions.

Forms of Discipline:

- Verbal Warning
- Written Warning
- Final Written Warning
- Dismissal

Gross misconduct may result in summary dismissal following a disciplinary hearing.

Termination of employment shall comply with statutory notice requirements. Summary dismissal may only occur after a fair disciplinary process in cases of gross misconduct.

SECTION 9: GRIEVANCE PROCEDURE

Employees are encouraged to resolve grievances at the lowest possible level.

Grievances must be lodged in writing if unresolved and escalated according to the prescribed stages.

No employee shall suffer prejudice for lodging a grievance in good faith.

SECTION 10: RESTRAINT OF TRADE

Employees agree that for a period of two (2) years after termination, they shall not: - Compete with Martin's Funerals within a 50km radius - Solicit clients or employees

This restraint is reasonable and necessary to protect legitimate business interests.

SECTION 11: CCTV & SECURITY

CCTV monitoring is used for security and operational purposes. Tampering with security systems constitutes serious misconduct.

Employees consent to reasonable searches of personal belongings on company premises.

SECTION 12: TERMINATION OF EMPLOYMENT

Notice periods apply as follows: - Less than 6 months: 1 week - 6–12 months: 2 weeks - Over 12 months: 4 weeks

Gross misconduct may result in dismissal without notice.

All company property must be returned upon termination.

SECTION 13: GOVERNING LAW

This Manual and all employment relationships are governed by the laws of the Republic of South Africa.

ANNEXURE A – FUNERAL SERVICES DRIVER**Role Purpose:**

To safely, lawfully, and respectfully transport deceased persons, staff, and funeral equipment. Key Duties include vehicle operation, removals, documentation, hygiene, confidentiality, and after-hours standby duties.

ANNEXURE B – ARRANGEMENT CLERK**Role Purpose:**

To coordinate funeral arrangements, assist clients, manage documentation, and ensure financial and administrative accuracy. Key Duties include client liaison, capturing records, cash handling, reporting, and compliance.

ANNEXURE C – MORTUARY EMPLOYEE**Role Purpose:**

To handle, prepare, and store deceased persons with dignity and respect. Key Duties include mortuary hygiene, preparation of remains, infection control, PPE usage, and confidentiality.

MARTIN'S FUNERALS – EMPLOYEE HANDBOOK (EXTRACT)

This Handbook Extract provides employees with a clear summary of expected conduct, working standards, and rights. It does not replace the full HR & Employment Manual.

PROFESSIONAL CONDUCT

- Employees must act with dignity, honesty, and respect at all times.
- Confidentiality regarding deceased persons, families, and company information is mandatory.
- Any form of dishonesty, negligence, or misconduct may lead to disciplinary action.

WORKING HOURS & DUTIES

- Funeral services operate 24 hours. Employees may be required to work after-hours or on standby.
- Employees must perform their duties lawfully, safely, and compassionately.

DISCIPLINE & GRIEVANCES

- Discipline is corrective and fair.
- Employees have the right to representation and appeal.
- Grievances should be raised at the lowest possible level.

TERMINATION

- Notice periods apply as prescribed by law.
- Summary dismissal may only occur after a fair disciplinary process.

CCMA DISCIPLINARY HEARING CHECKLIST – FRANCHISEES

BEFORE THE HEARING

- Issue written notice with charges
- Allow minimum 48 hours to prepare
- Advise employee of right to representation
- Appoint an impartial chairperson

DURING THE HEARING

- Read and explain charges clearly
- Allow employee to plead and present evidence
- Allow cross-examination of witnesses
- Keep written minutes

AFTER THE HEARING

- Decide guilt on balance of probabilities
- Consider mitigating and aggravating factors
- Issue written outcome and sanction
- Explain appeal rights

NOTE: Failure to follow procedural fairness may render dismissal unfair at CCMA.

DISCIPLINARY OUTCOME FORM

Martin's Funerals – CCMA Aligned

Employee Name:

Position:

Branch / Franchise:

Date of Hearing:

Chairperson:

FINDING

☐ Guilty ☐ Not Guilty

Finding based on balance of probabilities after consideration of all evidence.

REASONS FOR FINDING

MITIGATING & AGGRAVATING FACTORS CONSIDERED

SANCTION IMPOSED

☐ Verbal Warning ☐ Written Warning ☐ Final Written Warning

☐ Dismissal with Notice ☐ Summary Dismissal

Effective Date: _____

RIGHT OF APPEAL

The employee has been informed of the right to appeal within five (5) working days.

Chairperson Signature: _____ Date: _____

Employee Signature (Acknowledgement of Receipt): _____ Date: _____

EMPLOYEE HANDBOOK ACKNOWLEDGEMENT

I acknowledge that I have received, read, and understood the Martin's Funerals Employee Handbook Extract. I understand that it summarises key rules and expectations and does not replace the full HR & Employment Manual.

Employee Name: _____

Position: _____

Signature: _____ Date: _____

MANUAL & ANNEXURE CROSS / REFERENCE GUIDE

HR & Employment Manual

- Section 3 – Roles & Responsibilities → Refer to Annexures A–C
- Section 4 – Working Hours & Standby → Applies to all roles
- Section 8 – Disciplinary Code → Used with CCMA Checklist & Outcome Form
- Section 12 – Termination → Read with disciplinary outcomes

Annexures

- Annexure A – Funeral Services Driver (role-specific duties)
- Annexure B – Arrangement Clerk (role-specific duties)
- Annexure C – Mortuary Employee (role-specific duties)

All annexures form an integral part of the Employment Contract.

Employer / Franchisee Signature: _____ Date: _____

FRANCHISEE DISCIPLINARY FLOWCHART

Use this flowchart for ALL misconduct matters

- Identify misconduct or poor performance
- Investigate facts (informal enquiry)
- Is misconduct minor? → YES: Counsel / Verbal Warning
- Is misconduct serious or repeated? → YES: Issue Written Notice of Hearing
- Allow minimum 48 hours preparation
- Hold Disciplinary Hearing (procedural fairness)
- Decide guilt on balance of probabilities
- Consider mitigating & aggravating factors
- Issue sanction (warning / dismissal)
- Complete Disciplinary Outcome Form
- Explain right of appeal (5 working days)
- File all documents securely